

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HOAI BAO THUC NGUYEN,

Petitioner

VS.

TRUONG XUAN THI PHAM,

Respondent

) Case Number: FDI-15-784944

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Hoai Bao Thuc Nguyen (Husband) and Truong Xuan Thi Pham (Wife).
- 2) On December 15, 2015, Husband filed a Petition for Dissolution of Marriage, alleging a long-term marriage from February 24, 1981 – July of 2004 for a total duration of 23 years and 4 months.
- 3) On August 31, 2016, Wife filed a Response and Request for Dissolution of Marriage wherein she agreed with the total duration of marriage as stated in the underlying petition.
- 4) On September 9, 2017, the Court issued a pendente lite spousal support order in the amount of \$8,000 per month, payable by Husband to Wife based upon their agreement. This order was effective the filing date of Wife's Request for Order (i.e., June 22, 2017). See Findings and Order After Hearing filed October 17, 2017.
- 5) On October 17, 2017, the Court entered a Status Only Judgment terminating the parties' marital status.

- 6) On July 10, 2023, Wife filed an Ex Parte Application to Issue an Earnings Assignment Order, alleging Husband owed \$87,900.00 in arrears (not including interest) from the pendente lite spousal support order of \$8,000 per month payable to Wife by Husband.
- 7) On January 23, 2026, Husband filed a Request for Order seeking modification of spousal support to \$0 per month, citing retirement from employment at Kirkland & Ellis LLP effective February 1, 2026. The matter was set for hearing on April 7, 2026. Husband attached a letter from Kirkland & Ellis LLP indicating that he will be paid through the end of the fiscal year 2026.
- 8) On February 2, 2026, Husband filed a Proof of Service indicating his Request for Order was served on Respondent by personal service on January 29, 2026.
- 9) On April 7, 2026, the Court continued the matter to June 2, 2026, as the Court did not have enough evidence to modify support because Husband failed to file the required Income and Expense Declaration along with his request. Husband was ordered to file and serve an Income and Expense Declaration at least 9 days prior to the next hearing.
- 10) On May 27, 2026, Wife filed a Responsive Declaration requesting the Court maintain the existing order pending evidentiary hearing or, in the alternative, an order for the full amount of arrears to be paid. Wife asserts Husband owes a total of \$192,162 in unpaid spousal support and interest as of May 20, 2026.
- 11) On May 27, 2026, Wife filed Declaration of William Essig, CPA Re: Spousal Support Arrearage and Interest Thereon Owed from Petitioner to Respondent. The declaration states that Husband owes Wife \$135,900 in unpaid spousal support and \$50,626.68 in legal interest.
- 12) On May 27, 2026, Wife filed Declaration of David A. Gonzalez, wherein Wife requests an evidentiary hearing for the Court to conduct a Family Code section 4320 analysis.
- 13) On May 27, 2026, Husband filed a Reply Declaration. Husband states it is undisputed that his partner-level employment ended January 31, 2026, and he now works at a boutique law firm but has not received any income.
- 14) On June 2, 2026, the Court continued the matter to July 14, 2026, and ordered both parties to submit updated Income and Expense Declarations at least 10 days prior to the hearing.
- 15) On July 6, 2026, Husband filed an updated Income and Expense Declaration.
- 16) On July 6, 2026, Wife filed an updated Income and Expense Declaration.

1 17) At the prior July 14, 2026 hearing, Husband advised the Court that his Income and Expense
2 Declaration was attached to his original Request for Order, which the Court confirmed. The Court
3 admonished Husband for failing to notify Wife of his intent to appear at the hearing and
4 continued the matter to August 18, 2026.

5 18) Neither party submitted additional pleadings.

6 **B. Findings and Order**

7 1) Wife's request for a total of \$192,162 in unpaid spousal support (\$135,900) and interest
8 (\$50,626.68) as of May 20, 2026 is GRANTED. Husband shall pay Wife this balance in full by
9 September 18, 2026.

10 2) The Court is inclined to grant Husband's request for modification of temporary spousal support
11 due to unemployment effective August 1, 2026 (because July 31, 2026 is the end of fiscal year
12 2026, which is the date on which Kirkland & Ellis LLP stopped paying Husband); however, the
13 Court does not have sufficient information to calculate the modification of temporary spousal
14 support.

15 3) As such, **the parties are ordered to appear.**
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